

		(ROA 88.) The Clerk gave notice of the court’s October 22, 2024 Order to Plaintiffs by mail and electronic mail. (ROA 89.) Because it is not certain that Plaintiffs, who are self-represented, affirmatively consented to electronic service, the court calculates Plaintiffs’ FAC filing deadline using the five-day period associated with notice by mail. (Cal. Rule of Court, Rule 2.251; Code Civ. Proc., § 1010.6.)] Accordingly, Plaintiffs had until November 12, 2024 to file an amended complaint. Fifteen days from October 22, 2024 is November 6, 2024. The five day extension for service by mail brings the filing deadline to November 11, 2024. (Code Civ. Proc., § 1013.) Because November 11, 2024 was a court holiday, the period is extended to November 12, 2024. (Cal. Rules of Ct., rule 1.10, subd. (b).) The motion to strike the FAC in its entirety is denied. Plaintiffs timely filed the FAC. As discussed in the concurrent ruling on the Commission’s demurrer, Plaintiffs have complied with the Government Claims Act with regard to the Commission’s August 23, 2023 refusal to take adverse action against the individuals against whom Plaintiff Xia complained. The motion to strike Plaintiffs’ request for general or special damages is denied. Plaintiffs do not dispute that punitive damages are unavailable against the Commission. The motion to strike is granted to extent punitive damages are sought against the Commission. Defendant California Commission on Teacher Credentialing to give notice.
58	Nasser vs. Cotton Links LLC 22-01276603	Motion for Terminating Sanctions NO TENTATIVE RULING – Parties to appear on Zoom or in-person.
59	Beghtol vs. Saddleback Memorial Medical Center 23-01316589	Motion for Summary Judgment and/or Adjudication The Motion for Summary Judgment and Summary Adjudication brought by Defendant Saddleback Memorial Medical Center is DENIED, in whole. Defendant’s evidentiary objections fail to comply with California Rules of Court rule 3.1354, as they are not consecutively numbered. (Cal. Rules of Court rule 3.1354(b).) Nonetheless, the objections were reviewed and independently consecutively numbered. The Court OVERRULES Objections Nos. 1, 3 through 4 and 6 through 9. The statement from Plaintiff’s Counsel which indicates Exhibit 1 “is a true and correct copy of excerpts of Defendant’s document production,” is sufficient to authenticate the documents as against Defendant. (See ¶2 of Gleason Declaration [ROA No. 266].) Additionally, the statement is supported by sufficient personal knowledge and foundation, given Mr. Gleason is an attorney of record for Plaintiff in this action. (¶1 of Gleason Declaration [ROA No. 266].) Thereafter, while Defendant repeatedly asserts that Plaintiff’s declaration should be dismissed as “uncorroborated and self-serving,” the statements targeted within Objections Nos. 3 through 4 and 6 through 9, adequately describe conduct and experiences <i>by Plaintiff</i>, rather than mere legal conclusions or subjective beliefs.